

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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CRISTIAN FIGUEROA,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE SERGEANT STEVEN COUNIHAN, Tax Reg. No. 952620; NYPD POLICE OFFICER JOHN MIGLIACCIO, Tax Reg. No. 964169; NYPD POLICE OFFICER NICHOLAS RIOS, Tax Reg. No. 955377; NYPD POLICE OFFICER MIKE SUAREZ, Tax Reg. No. 966640; and NYPD POLICE OFFICERS JOHN AND JANE DOES NUMBERS ONE THROUGH TEN,

Plaintiff designates Bronx County as the place of trial.

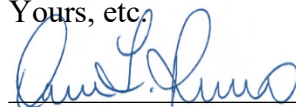
Defendants.
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To the above-named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 8, 2023

Yours, etc.



Omar T. Russo, Esq.
Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

NYPD POLICE SERGEANT STEVEN COUNIHAN, Tax ID No. 952620, NYPD PSA 7; 737 Melrose Avenue, Bronx, New York 10451

NYPD POLICE OFFICER JOHN MIGLIACCIO, Tax Reg. No. 964169; NYPD PSA 7; 737 Melrose Avenue, Bronx, New York 10451

NYPD POLICE OFFICER NICHOLAS RIOS, Tax Reg. No. 955377; NYPD PSA 7; 737 Melrose Avenue, Bronx, New York 10451

NYPD POLICE OFFICER MIKE SUAREZ, Tax ID No. 966640, NYPD PSA 7; 737 Melrose Avenue, Bronx, New York 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
CRISTIAN FIGUEROA,

VERIFIED COMPLAINT

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE SERGEANT STEVEN COUNIHAN, Tax Reg. No. 952620; NYPD POLICE OFFICER JOHN MIGLIACCIO, Tax Reg. No. 964169; NYPD POLICE OFFICER NICHOLAS RIOS, Tax Reg. No. 955377; NYPD POLICE OFFICER MIKE SUAREZ, Tax Reg. No. 966640; and NYPD POLICE OFFICERS JOHN AND JANE DOES NUMBERS ONE THROUGH TEN,

Plaintiff designates Bronx
County as the place of trial.

Defendants.
----- X

Plaintiff CRISTIAN FIGUEROA, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violations of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution. On September 28, 2020, at approximately 10:40 p.m., Plaintiff Cristian Figueroa, while lawfully at or around East 144th Street and 3rd Avenue, County of Bronx, State of New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant police officers. Plaintiff was subjected to the use of excessive force, assault, and battery in his unlawful arrest, as well as suffered mental and emotional injury as a result. Further, Plaintiff was severely injured, and the defendant officers denied him timely medical treatment. Plaintiff was subjected to unlawful imprisonment for approximately one (1) week before he was finally released. Plaintiff's criminal case was dismissed and sealed on or about May 31, 2022. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, and fabricated evidence against Plaintiff in violation of the Fourth, Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Cristian Figueroa is a resident of the state of New York.
3. NYPD Police Sergeant Steven Counihan, Tax Reg. No. 952620, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. NYPD Police Sergeant Steven Counihan, Tax Reg. No. 952620, is being sued in his individual and official capacities.
5. NYPD Police Sergeant Steven Counihan, Tax Reg. No. 952620, was at all times relevant herein assigned to the NYPD PSA 7.
6. NYPD Police Officer John Migliaccio, Tax Reg. No. 964169, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD Police Officer John Migliaccio, Tax Reg. No. 964169, is being sued in his individual and official capacities.
8. NYPD Police Officer John Migliaccio, Tax Reg. No. 964169, was at all times relevant herein assigned to the NYPD PSA 7.
9. NYPD Police Officer Nicholas Rios, Tax Reg. No. 955377, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
10. NYPD Police Officer Nicholas Rios, Tax Reg. No. 955377, is being sued in his individual and official capacities.
11. NYPD Police Officer Nicholas Rios, Tax Reg. No. 955377, was at all times relevant herein assigned to the NYPD PSA 7.
12. NYPD Police Officer Mike Suarez, Tax Reg. No. 966640, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
13. NYPD Police Officer Mike Suarez, Tax Reg. No. 966640, is being sued in his individual and official capacities.
14. NYPD Police Officer Mike Suarez, Tax Reg. No. 966640, was at all times relevant herein assigned to the NYPD PSA 7.
15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees

of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On September 28, 2020, at approximately 10:00 P.M., Plaintiff was lawfully in the vicinity of East 144th Street and 3rd Avenue, County of Bronx, State of New York, when he was subjected to an unlawful stop, question, frisk, search, false arrest, false imprisonment, and denial of various federal constitutional rights by the defendant NYPD police officers.

19. Plaintiff was driving, in violation of no law, regulation, ordinance, or lawful order, when an unknown black vehicle began aggressively following him and crossing in and out of the lane causing alarm.

20. The vehicle later did not engage any lights or sirens to indicate to Plaintiff these were law enforcement officers.

21. After a short while the vehicle, which would only later be discovered to be an unmarked NYPD vehicle, crashed into Plaintiff's vehicle, totaling it as well as injuring Plaintiff's back and fracturing his sternum.

22. The impact caused Plaintiff's vehicle to hit a parked car.

23. The loud noise from the motor vehicle impacts caused a commotion and scores of bystanders immediately fled the area on foot in all directions, including the occupants of the vehicle impacted secondarily by Plaintiff's.

24. Still not knowing the occupants of the vehicle that had hit him, and fearing for his safety, Plaintiff exited his vehicle and began to run, knowing the area was not safe and believing himself in danger of attack by unknown individuals.

25. Seconds later, Plaintiff was tackled from behind by those who would be discovered to be the defendant officers; it was only at this point that the plaintiff realized he had been pursued by police officers.

26. The defendant officers immediately began to arrest the plaintiff, and he was punched, kicked, tased, and hit about the head with a blunt metal object as he lay motionless on the ground.

27. Plaintiff did not resist arrest.

28. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the defendant officers have an objective basis to accuse Plaintiff of committing a crime or violating the law in any way.

29. At no point did defendant NYPD police officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

30. Nevertheless, Plaintiff was unlawfully and brutally arrested by defendant officers, restrained with unreasonably tight metal handcuffs behind his back after having been forcefully impacted by an NYPD vehicle and brutalized, sustaining injuries.

31. Thereafter he was placed in the back of an NYPD vehicle and transported to the PSA 7 against his will.

32. While Plaintiff was in custody at PSA 7, he asked for medical attention for his many injuries, and his requests were repeatedly ignored until finally Plaintiff was transported to Lincoln Hospital for worsening chest pains.

33. As a result of his injuries, Plaintiff would spend one (1) week admitted to Lincoln Hospital with a fractured sternum and debilitating pain.

34. Upon his release Plaintiff was returned to police custody.

35. While in custody, the defendant police officers provided the Bronx County District Attorney's Office with false, misleading, and/or incomplete information that Plaintiff had committed crimes.

36. Specifically, the defendant officers falsely represented to the Bronx County District Attorney's Office that Plaintiff had committed crimes including: Criminal Possession of a Weapon, Reckless Endangerment, Reckless Driving, and myriad other related charges.

37. On or around October 22, 2020, Plaintiff was arraigned in Bronx Criminal Court and charged with the crimes he did not commit.

38. As a result of the defendant officers' false accusations, bail was set at \$75,000, and because Plaintiff was unable to immediately post bail, he was sent to Rikers Island Correctional Facility where he remained for approximately two (2) additional days.

39. Thereafter Plaintiff would seek medical attention at St. Barbabus and Clara Mass Hospitals in New Jersey, Suburban Orthopaedic Medical Center in New Jersey, Theradynamics Physical and Occupational Therapy in Harlem, and a physical therapist in the Bronx.

40. The false charges made against the plaintiff were dismissed and sealed in their entirety on or around May 31, 2022.

41. Some of the defendant officers observed the violation of Plaintiff's rights under the Constitution of the United States and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

42. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

66. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

67. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

68. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

69. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

70. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

71. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRD CAUSE OF ACTION**False Imprisonment**

73. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

74. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

75. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

76. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION**Violation of Plaintiff's Fourth and Fourteenth Amendment Rights:
Excessive Force**

77. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

78. The use of excessive force by defendants by, amongst other things, crashing into his vehicle, tackling him to the ground, beating and tasing him while handcuffed, and denying him timely medical attention, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

FIFTH CAUSE OF ACTION**Failure to Intervene**

79. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

80. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

81. Defendants failed to intervene to prevent the unlawful conduct described herein.

82. As a result of the foregoing, Plaintiff suffered significant mental and emotional injuries, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

83. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

84. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

85. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

86. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

87. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

88. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

89. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

90. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

SEVENTH CAUSE OF ACTION

Malicious Prosecution

91. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

92. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution.

93. Defendants commenced and continued a criminal proceeding against Plaintiff.

94. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

95. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

EIGHTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

96. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

97. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

98. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

99. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

100. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

96. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
February 8, 2023

Yours, etc.



Omar T. Russo, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

NYPD POLICE SERGEANT STEVEN COUNIHAN, Tax ID No. 952620, NYPD PSA 7;
737 Melrose Avenue, Bronx, New York 10451

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Melrose Avenue, Bronx, New York 10451

NYPD POLICE OFFICER MIKE SUAREZ, Tax ID No. 966640, NYPD PSA 7; 737
Melrose Avenue, Bronx, New York 10451

ATTORNEY'S VERIFICATION

OMAR T. RUSSO, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 8, 2023



OMAR T. RUSSO, ESQ.